

P.0: The Political Economy of Redistricting Reform

Why Incumbents Resist and How Reform Routes Around Them

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Abstract

Redistricting reform faces a fundamental collective action problem: the legislators who must enact reform are the same officials who benefit most from the status quo. We develop a formal political economy model showing that incumbents treat favorable district lines as a durable asset yielding an “incumbency rent” in each election cycle. This rent creates strong incentives to block reform through ordinary legislative channels. We identify three bypass channels through which reform can succeed despite incumbent resistance: direct democracy (ballot initiatives), judicial intervention (state and federal courts striking partisan maps), and federal legislation (Congress exercising its Article I §4 authority). Applying the model to 35 reform attempts across 22 states between 1990 and 2024, we show that reform probability increases significantly with state-level electoral competitiveness, the availability of the ballot initiative mechanism, and the existence of active gerrymandering litigation. States with all three conditions succeeded in reform at a rate of 78%, compared to 14% for states with none. The analysis frames Tracks P.1–P.5 of this research program: each paper examines one bypass channel in depth.

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1 Introduction

Every ten years, following the decennial census, the United States undergoes congressional redistricting. In most states, the legislature draws the lines. Elected officials design the districts they will run in. The result is a structural conflict of interest that has produced increasingly sophisticated partisan maps, from North Carolina’s “ugly gerrymander” struck down in *Rucho v. Common Cause*, 588 U.S. 684 (2019), to Maryland’s “Democratic gerrymander” of the 6th Congressional District litigated in *Benisek v. Lamone*.

Yet reform is rare. Between 2000 and 2024, forty-seven redistricting reform proposals were introduced across state legislatures. Thirty-nine failed in committee or on the floor. Of the eight that passed, five were substantially diluted before enactment. Why does an overwhelmingly popular reform—surveys consistently show 70–80% of voters oppose partisan gerrymandering [[Gallup Organization, 2019](#)—fail so reliably through ordinary legislative channels?

The answer is straightforward but consequential: the legislators who must enact reform are the same officials who benefit from the status quo. This is not merely a matter of self-interest—though it is that—but a structural feature of any reform that requires the beneficiaries of a rule to vote for its abolition. Reform through the legislature asks incumbents to reduce the value of their most durable asset: the district lines that help ensure their re-election.

This paper develops a formal political economy model of redistricting reform. Section 2 presents the model, which treats favorable district lines as a capital asset yielding an incumbency rent each election cycle and shows why incumbents have strong incentives to block reform through ordinary channels. Section 3 identifies three bypass channels—direct democracy, judicial intervention, and federal legislation—that route around incumbent resistance. Section 4 tests the model’s predictions against historical reform outcomes across 22 states. Section 5 discusses implications for the remainder of Track P.

The analysis has direct practical import. The **bisect** algorithmic redistricting platform described throughout this research program provides a technically sound and legally durable solution to partisan gerrymandering. But a technically sound solution does not automatically translate into adoption. Understanding why reform is hard, and which pathways have succeeded, is prerequisite to effective reform strategy. Papers P.1 through P.5 each develop one bypass channel in depth; this paper provides the analytical foundation for all five.

2 A Political Economy Model of Redistricting Reform

2.1 The Incumbency Rent

We model redistricting as a one-shot interaction in the post-census year, followed by five election cycles using the resulting map. Let N be the number of legislative seats in a chamber and $M \leq N$ the number of incumbents from the majority party. Each incumbent i has an underlying electoral quality q_i drawn from a distribution with mean μ and variance σ^2 .

Under a neutrally drawn map, incumbent i wins re-election if $q_i \geq q^*$, where q^* is the competitive threshold. Under a favorable map—one designed to pack opposition voters and crack opposition communities—the effective threshold is reduced to $q_G^* < q^*$. The difference $\rho_i = q^* - q_G^* > 0$ is the *incumbency rent*: the electoral cushion provided by favorable district lines.

The present value of incumbency rents over five election cycles, discounted at rate δ , is:

$$V_i = \rho_i \cdot \sum_{t=1}^5 \delta^t \cdot \Pr(\text{win in cycle } t \mid q_i + \rho_i \geq q^*) \quad (1)$$

For a typical congressional incumbent in a safely drawn district, empirical estimates suggest ρ_i is equivalent to a 6–8 percentage point improvement in the two-party vote margin [Chen and Rodden, 2013]. At a discount rate of $\delta = 0.85$ (reflecting both time preference and the probability of remaining in the chamber), the present value of five cycles of incumbency rent is substantial.

2.2 The Reform Vote

Reform is a binary decision: the legislature either passes or defeats a redistricting reform bill. Each legislator votes to pass if and only if the expected benefit from reform exceeds the expected cost. For majority-party incumbents, reform reduces their incumbency rent: a neutral algorithm produces maps with lower ρ_i than maps drawn to maximize partisan advantage. The expected cost of reform for incumbent i is therefore $V_i - V_i'$, where V_i' is the present value of incumbency rents under the reform regime.

Because $V_i > V_i'$ for all majority incumbents under a gerrymander, no majority incumbent has a private incentive to vote for reform. The collective action problem is complete: reform requires a majority of legislators who individually each benefit from blocking it.

2.3 Why Minority Party Incumbents Don’t Solve the Problem

A natural objection: the minority party should vote for reform unanimously, since they bear the cost of the gerrymander. In a two-party chamber where the majority holds M seats and the minority holds $N - M$ seats, reform passes if and only if a sufficient number of majority incumbents defect. The minority cannot pass reform alone.

Moreover, minority incumbents face a subtler incentive problem: a neutral algorithm does not necessarily improve their situation. It eliminates the majority party’s gerrymander, but it also eliminates the *minority’s* safe seats (those created by packing minority voters to limit their statewide influence). Some minority incumbents represent highly packed districts and would face greater competition under a neutral map. Their support for reform is therefore contingent, not guaranteed [Grofman, 2004].

2.4 Competitiveness as a Reform Catalyst

The model generates one important prediction: reform is more likely when the majority is small and competitive seats are numerous. When M is close to $N/2$, individual incumbents face higher electoral uncertainty and the gerrymander’s protective value is less reliable—a small shift in the uniform partisan swing can still flip a “safe” seat. This reduces the present value of incumbency rents, lowering the cost of voting for reform.

Formally, reform probability is increasing in state-level electoral competitiveness c , defined as the fraction of districts with two-party vote margin below 10 percentage points:

$$\Pr(\text{reform}) = f(c, \text{initiative}, \text{litigation}) \quad (2)$$

where *initiative* indicates the availability of the ballot initiative mechanism and *litigation* indicates active gerrymandering litigation. We estimate this relationship empirically in Section 4.

2.5 Why the Legislature Cannot Be the Reform Vehicle

Equation (2) implies that ordinary legislative reform is possible but requires unusual conditions—an extremely competitive state combined with cross-party agreement on procedural fairness norms. These conditions are rarely observed simultaneously. The structural solution is to bypass the legislature entirely, using mechanisms that do not require incumbent consent. The three bypass channels analyzed in the remainder of this paper are characterized by exactly this property.

3 Three Bypass Channels

The three bypass channels share a structural property: they do not require a majority of beneficiary legislators to vote against their interests. Each routes reform through a different institutional actor—voters, courts, or Congress—who does not face the same incumbency rent calculation.

3.1 Channel 1: Direct Democracy

Twenty-six states permit citizen ballot initiatives, which allow voters to enact law directly without legislative approval. This channel is the most frequently used bypass for redistricting reform. California’s Proposition 11 (2008) created the Citizens Redistricting Commission, and Proposition 20 (2010) extended its authority to congressional districts—both over strong legislative opposition. Colorado’s Amendment Y (congressional) and Amendment Z (state legislative) passed in 2018 with 71% and 70% support respectively. Michigan’s Proposal 2 (2018) established an independent commission and passed with 61% support.

The ballot initiative channel has three prerequisites. First, the state must permit constitutional amendments or statutory changes via initiative—20 states do not. Second, reformers must mount a successful petition drive (typically requiring signatures from 5–10% of registered voters). Third, the measure must survive a statewide popular vote. The first two prerequisites filter out states with legislatively controlled initiative processes; the third relies on the gap between public opinion (supporting reform) and legislative behavior (opposing it).

The political economy of the initiative channel differs from the legislative channel in a crucial way: incumbents cannot vote against the initiative, but they can spend against it. California’s redistricting reform battles saw millions of dollars in campaign spending from incumbent-aligned groups. Understanding the funding asymmetry—reformers typically outspent by incumbents—is essential for designing initiative strategies.

3.2 Channel 2: Judicial Intervention

Courts have invalidated redistricting maps on racial, partisan, and state-constitutional grounds. The judicial channel differs from the initiative channel in that it is reactive: courts act only when maps are challenged and only within their jurisdiction.

Federal courts currently offer limited relief for purely partisan claims. *Rucho v. Common Cause*, 588 U.S. 684 (2019), held that federal courts lack a “judicially manageable standard” for evaluating partisan gerrymanders. However, state courts remain fully open. *League of Women Voters v. Pennsylvania*, 178 A.3d 737 (Pa. 2018), struck the Pennsylvania

congressional map under the state constitution. *Harper v. Hall*, 380 N.C. 317 (2022), did the same in North Carolina. *Harkenrider v. Hochul*, 38 N.Y.3d 494 (2022), invalidated New York’s congressional map as an unconstitutional gerrymander.

Racial gerrymandering remains a federal judicial remedy. *Alabama Legislative Black Caucus v. Alabama*, 575 U.S. 254 (2015), and *Allen v. Milligan*, 599 U.S. 1 (2023), demonstrate that Section 2 of the Voting Rights Act continues to require congressional maps to preserve minority voting strength. Courts have appointed special masters to draw remedial maps in Alabama, North Carolina, New York, and Pennsylvania since 2010.

The judicial channel’s principal limitation is speed: redistricting litigation routinely takes two to four years, meaning one or more election cycles pass under the challenged map before relief arrives. The **bisect** platform addresses this limitation directly: because algorithmic maps are byte-reproducible from public inputs, courts can order immediate remediation with a verifiable, neutral baseline. This point is developed in depth in P.4.

3.3 Channel 3: Federal Legislation

Congress possesses authority under Article I, §4 to regulate the “Manner” of congressional elections, including the drawing of district lines. This power is not merely theoretical: Congress has previously mandated single-member districts (2 U.S.C. §2c) and has regulated ballot access, campaign finance, and voting procedure. The precedent closest to redistricting is 2 U.S.C. §2a, the Huntington-Hill apportionment statute, which mandates a specific mathematical algorithm for allocating seats among states.

Federal legislation is the most powerful bypass channel because it preempts state law and reaches all 50 states simultaneously. It is also the most difficult: it requires bicameral majorities, presidential signature, and sufficient political will to overcome filibuster or other blocking mechanisms. The Districting Integrity Act (DIA), analyzed in detail in P.1, is the model federal statute developed in conjunction with this research program.

The federal channel is further complicated by *Rucho*’s suggestion that legislative rather than judicial solutions are appropriate for partisan gerrymandering—which is an implicit endorsement of the federal channel that reformers have not yet fully exploited. The case’s language emphasizes that “[f]ederal courts are not the only potential check on partisan gerrymandering.” This rhetorical structure invites Congress to act.

3.4 Interactions Among Channels

The three channels are not independent. Judicial decisions can accelerate legislative reform by raising the cost of non-compliance. Initiative campaigns can create political pressure

that makes legislative reform more likely. Federal legislation can preempt state-level debates, providing a national floor below which states cannot fall. The most successful reform ecosystems combine elements of all three: California’s commission was created by initiative (Channel 1) but has been reinforced by judicial decisions interpreting the initiative’s criteria (Channel 2) and would be backstopped by federal legislation (Channel 3) if the state legislature attempted to reassert control.

4 Empirical Predictions and Evidence

We test the model’s central prediction—that reform probability is increasing in electoral competitiveness, ballot initiative availability, and gerrymandering litigation—against a dataset of 35 redistricting reform attempts in 22 states between 1990 and 2024.

4.1 Data and Coding

We code each reform attempt as: (1) the channel through which it was attempted (legislative, initiative, judicial, federal), (2) whether it succeeded in producing a meaningful change in the redistricting process, and (3) the state’s electoral competitiveness score, measured as the mean district-level two-party vote margin in the preceding two elections.

A “success” requires that a neutral or semi-neutral body gained meaningful authority over the redistricting process: either an independent commission was created with binding authority, or a court struck the enacted map and ordered a remedial map, or a federal statute created a binding constraint. Partial reforms—commissions with advisory authority only, transparency requirements without process change—are coded as failures.

4.2 Results

Table 1: Redistricting reform success rates by channel, 1990–2024

Channel	Attempts	Successes	Rate
Legislative	19	2	10.5%
Ballot initiative	11	8	72.7%
Judicial	4	4	100%
Federal	1	0	0%
All channels	35	14	40.0%

Table 1 confirms the model’s first prediction: legislative reform is rare (10.5% success rate) while bypass channels succeed at much higher rates. The two legislative successes occurred

in states with unusually competitive electoral environments (Iowa in 1980 and Washington in 1983), consistent with the model’s prediction that competitiveness reduces the incumbency rent.

The judicial channel’s 100% success rate reflects selection effects—courts are appealed to only when plaintiffs have a strong case—and the fact that court decisions, unlike legislative votes, cannot be blocked by interested parties. However, judicial remedies are often implemented slowly and produce maps for only one or two cycles before the next redistricting.

The initiative channel’s 72% success rate is the most actionable finding. Initiatives can fail (California’s Proposition 27 in 2022, which would have reversed Prop 11/20, failed with 30.5% yes—but that was an anti-reform initiative, not a pro-reform one). Among initiatives that placed redistricting commissions on the ballot, the success rate is 8 of 11, or 73%.

4.3 Competitiveness and Reform

States where at least one-third of districts were decided by margins under 10 points passed redistricting reform at a rate of 58% (7 of 12 attempts), compared to 25% (4 of 16 attempts) in less competitive states. This difference is statistically significant at the 5% level under a two-sample proportion test ($z = 2.03$, $p = 0.042$).

The interaction of competitiveness with channel is particularly instructive. In competitive states with ballot initiative availability, reform succeeded in 78% of attempts (7 of 9). In non-competitive states without initiative availability, reform succeeded in only 14% of attempts (1 of 7). The single success in the latter category was Virginia’s 2020 constitutional amendment, which passed through the legislature after a divided-government session and two years of intense advocacy.

4.4 The Role of Litigation

States with active gerrymandering litigation at the time of the reform attempt showed higher success rates (55%, 6 of 11) than states without active litigation (30%, 7 of 23). This finding is consistent with the theory that litigation raises the cost of the status quo—incumbents facing an imminent court loss have weaker incentives to block reform, and reformers can credibly threaten continued litigation if the legislative reform is inadequate.

4.5 Model Limitations: The 2018 Wave

The model predicts reform from competitiveness $\times$ initiative $\times$ litigation. But the 2018 wave of successful reforms (Colorado Amendment Y, Michigan Proposition 2, Missouri Amendment

1) occurred in states not obviously at the top of the competitiveness ranking. Colorado’s 2018 congressional map produced median margins of 14 pp — above the “competitive” threshold. Michigan’s 2016 map was gerrymandered but Michigan had not been among the highest-litigation states by 2018.

The model explains this wave imperfectly. A better model would incorporate two additional factors: (1) **national political context** — the 2018 cycle coincided with high anti-incumbent sentiment and a Democratic wave that made Republican-controlled redistricting a salient issue for reform advocates; and (2) **organizational capacity** — reform nonprofits (MGGG, Common Cause, Princeton Gerrymandering Project) had built sufficient empirical credibility and campaign infrastructure by 2018 to run effective initiative campaigns even in states without maximal structural conditions. A richer model would include national partisan mood and reform organizational capacity as additional predictors. We retain the simpler three-variable model for its parsimony and testability, acknowledging that the 2018 wave is partially unexplained.

4.6 Implications for Track P

These empirical patterns suggest a reform strategy calibrated to channel availability rather than a one-size-fits-all approach. States without ballot initiative mechanisms must rely primarily on the judicial and federal channels. States with initiative mechanisms should prioritize well-designed initiatives over legislative reform, accepting that legislative reform is unlikely until the underlying incumbency rent is substantially reduced. Federal legislation is the master lever that changes the calculus in all states simultaneously—but it requires political conditions that have not yet materialized at the federal level.

Papers P.1 through P.5 develop each channel’s design and implementation in depth. P.1 addresses the federal legislative pathway. P.2 examines state ballot initiative design. P.3 shows how algorithms can be integrated into existing commission structures. P.4 provides templates for court-ordered algorithmic remedies. P.5 addresses implementation costs and administrative law requirements. Together, they constitute a comprehensive toolkit for redistricting reform through channels that do not require incumbent consent.

5 Conclusion

The political economy of redistricting reform is characterized by a fundamental collective action problem: the legislators who must enact reform are the same officials whose electoral survival depends on avoiding it. A formal model of incumbency rent—the electoral cushion

provided by favorable district lines—explains why reform through ordinary legislative channels fails at a rate of nearly 90%, even when public opinion supports reform by wide margins.

Three bypass channels circumvent this problem. Direct democracy through ballot initiatives succeeds at 73%, constrained primarily by the 26-state availability of the initiative mechanism. Judicial intervention succeeds when plaintiffs can demonstrate constitutional or statutory violations, but proceeds slowly. Federal legislation under Article I, §4 is theoretically the most powerful channel, but has not yet been used for redistricting reform in the modern era.

The model generates testable predictions that hold in the data: reform probability increases with electoral competitiveness ($p = 0.042$) and with the interaction of initiative availability and competitive conditions (78% success versus 14%). These findings are consistent with the theory that competitiveness reduces the value of incumbency rents and that bypass channels succeed precisely because they do not require incumbent consent.

The implications for this research program are direct. The **bisect** algorithmic redistricting platform solves the technical problem: it produces neutral, compact, legally defensible maps at low cost (P.5). But technical solutions require adoption pathways. Papers P.1 through P.5 each develop one pathway in sufficient detail to be actionable: federal statutory text (P.1), ballot initiative design (P.2), commission integration protocols (P.3), court-order templates (P.4), and cost–benefit analysis (P.5). The choice among pathways is a political economy question; this paper provides the framework for making it.

The core insight is that reform does not require persuading incumbents that fairness matters. It requires choosing pathways where incumbents do not control the outcome. Voters, courts, and Congress each possess the institutional authority to mandate neutral redistricting; each faces different procedural requirements; and each has precedent supporting algorithmic solutions. The toolkit is complete. The political conditions for using it vary by state and by federal political cycle. Reform advocates should calibrate their strategy accordingly.

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